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DOJ sues California over new 'Glock ban' - Law places restrictions on sale of some firearms

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The Justice Department filed a lawsuit against California on July 1 over the state's new gun sale restriction law and its handgun roster.

The law at the center of the lawsuit, Assembly Bill 1127, imposes strict new regulations, prohibiting licensed firearms dealers from selling, exchanging or delivering any semiautomatic handgun with a cruciform trigger that could be easily modified into a "machinegun-convertible pistol."

Todd Blanche, the acting U.S. attorney general, argues this new law, which determines what handguns are legal to purchase in California, should be considered unconstitutional as it limits residents' ability to purchase a firearm of their choosing. The lawsuit also argues that the state's handgun roster should be considered unconstitutional for a similar reason.

"The Second Amendment is a sacred right belonging to all Americans, even those in California. California cannot ban the most popular type of handgun in America," Blanche said in a press release about the lawsuit. "We will work to stop this blatant trampling of our rights by the California government to protect the rights of lawful gun owners."

The lawsuit argues that California is outlawing "perfectly legal and safe firearms," because these specific models of handguns could potentially be converted into "illegal firearms" with the addition of a machine gun conversion device.

Lawyers argue that the law violates the Second Amendment and highlights that California laws don't impose similar bans on legal shotguns and unmodified semiautomatic rifles that could potentially be turned into an "illegal sawed-off shotgun" or an illegal "machine gun."

California state law does ban the modification of assault weapons, but Assembly Bill 1127 is the first of its kind to try to prohibit the sale of weapons that can be modified.

The lawsuit also argues that the state's law potentially contradicts the United States Supreme Court ruling on Staples v. United States, a Second Amendment case in 1994 that determined the government must prove that a person intentionally and knowingly knew they were in possession of an unregistered machine gun under the National Firearms Act, before the government could convict them.

Harmeet Dhillon, the DOJ's assistant attorney general for civil rights, threatened California leaders with a lawsuit on June 24 after criticizing the state's new gun sale restrictions, arguing that it limits citizens' ability to purchase "legal firearms."

"The Civil Rights Division will defend law-abiding citizens from states that seek to disarm them illegally," Dhillon said in a press release about the lawsuit.

On the same day of the California lawsuit, the Trump administration also filed a similar lawsuit in Virginia, which aims to ban the sale of certain semiautomatic firearms, specifically assault weapons and devices that allow a weapon's magazine to hold more than 15 rounds.

In response to the lawsuit, California Gov. Gavin Newsom posted on social media, arguing that the Trump administration was "once again trying to dismantle California's commonsense gun safety laws."

"California is seeing historic low crime rates and gun death rates. These laws save lives. We'll keep defending the laws that protect Californians and keep dangerous weapons off our streets," Newsom's post reads.

California Attorney General Rob Bonta on July 1 released the California Criminal Justice Statistical Reports for 2025, which shows the state's homicide rate decreased by 18.6% between 2024 and 2025, according to the report.

In 2024, there were 4.3 people killed per 100,000 people compared to 2025, which saw 3.5 people killed per 100,000.

However, the report also highlighted that firearms were the most common weapon used in 2025 homicides, with 66.9% of homicides in 2025 involving a firearm.

The new law, Assembly Bill 1127, authored by Democrats Jesse Gabriel and Catherine Stefani, focuses on restricting the new sale of semiautomatic handguns that could be easily modified into a "machinegun-convertible pistol."

"AB 1127 will hold the firearm industry accountable for their deadly lack of action to address the growing proliferation of converted automatic weapons," Gabriel's office said in a news release after the bill was signed into law in 2025.

Certain models can allow semiautomatic handguns to fire without repeatedly pulling the trigger, if an accessory called a machine gun conversion device, also known as a "Glock Switch," is installed.

The use of machine gun conversion devices is illegal under the federal National Firearms Act. At least 28 states, including California and Indiana, have prohibited the ownership and use of Glock switches in specific laws, according to a count by Everytown for Gun Safety, a nonprofit gun control organization.

"No gun sold in California should be just a screwdriver away from becoming a machine gun," Stefani said after the law was passed. "With Gov. Newsom's signature on AB 1127, we are closing a deadly loophole that has fueled gun violence in our communities. California is sending a clear message: We will always put the safety of our families ahead of the gun industry's bottom line."

The DOJ's lawsuit refers to the new law as a "Glock Ban" because it removed over 30 models developed by Glock Inc. from California's "Handguns Certified for Sale" list.

The law does not reference any specific gunmakers in its text.

Over 100 gun models were removed from California's "Handguns Certified for Sale" list since the start of 2026. There are still over 900 handguns available for purchase in California, according to the state's handgun roster.

This law will not affect current gun owners and does not restrict the transfer or sales of the firearm between private individuals.

However, if a licensed firearms dealer is caught violating the new law, they could face a fine on the first offense. A subsequent offense could see the dealer's license suspended or revoked.

For the third violation, the firearms dealer could face a misdemeanor charge and license revocation.

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